IN THE SUPREME COURT OF THE STATE OF ARIZONA

Arizona Supreme Court No. _____

DENNIS LILES, an individual; LESLIE WHITE, an individual; and CHARMAINE ROTH, an individual,
Petitioners,

v.

ADRIAN FONTES, in his official capacity as Arizona Secretary of State; and KRISTIN K. MAYES, in her official capacity as Arizona Attorney General,
Respondents.

Maricopa County Superior Court Case No. CV2026-031499

PETITION FOR SPECIAL ACTION

James K. Rogers (No. 027287)
AMERICA FIRST LEGAL FOUNDATION
611 Pennsylvania Ave., SE #231
Washington, DC 20003
(202) 964-3721
James.Rogers@aflegal.org
Attorney for Petitioners

INTRODUCTION

Arizona law gives the Secretary of State a consequential but confined assignment when a statewide measure is placed on the ballot. The Secretary must prepare a descriptive title that "shall contain a summary of the principal provisions of the measure," and the ballot's "yes" and "no" statements must state "the essential change in the existing law" produced by each vote. A.R.S. § 19-125(D). Those statutory commands matter because the official wording may be the last—or only—description voters read before deciding. *Quality Education & Jobs Supporting I-16-2012 v. Bennett* ("*Quality Education*"), 231 Ariz. 206, 208 ¶ 10 (2013); *Lane v. City of Scottsdale*, 258 Ariz. 460, 466 ¶ 16 (App. 2024).

Proposition 144 would add a new section to Article VII of the Arizona Constitution. Its first operative sentence provides that "only citizens may register and vote in Arizona elections." A separate provision states that Arizona elections "shall be decided solely by the votes of eligible citizen voters." Citizenship is also the first subject in HCR 2001's reference title. APP035–APP038. Yet neither the descriptive title nor any of the six numbered clauses describing a "yes" vote mentions citizenship. APP031. The title instead devotes most of its words to voter identification and relegates everything else to "other changes to election administration and campaign finance prohibitions," while leaving twenty-two of the fifty words authorized by statute unused. *Id*.

The official "yes" statement then goes beyond omission. Clause (4) appends the commentary that Proposition 144's foreign-national-spending prohibition is "similar to prohibitions that already exist in federal law." APP031. That comparison appears nowhere in HCR 2001 and obscures the measure's distinct reach: the federal prohibition does not reach foreign-national spending directed solely at ballot initiatives, while Proposition 144 *would*

prohibit spending to influence any Arizona election, including ballot initiatives. Clause (5) likewise substitutes prediction for text. Section F says election laws may be enacted if they are "rationally connected to a legitimate state interest." APP036. The ballot instead tells voters that the provision "may make it harder to challenge election laws." APP031. That conclusion depends on unresolved assumptions about how future courts will construe the new language and how it will interact with existing constitutional doctrines.

The superior court denied all relief. It held that Petitioners lacked standing even under Arizona's mandamus statute because the Secretary possessed drafting discretion; it then held that the official wording was not false or clearly misleading. APP135–APP143. Both holdings rest on legal error. *Arizona Public Integrity Alliance v. Fontes* ("*AZPIA*"), 250 Ariz. 58, 62 ¶¶ 10–12 (2020), holds that citizens and voters who seek lawful ballot materials are "beneficially interested" under A.R.S. § 12-2021. And discretion over *how* to comply does not create discretion *whether* to comply. Section 19-125(D) prescribes the content Respondents must produce. A court may compel performance within those statutory boundaries while leaving the precise wording to the officers charged with drafting it. asdf

Immediate Supreme Court review is necessary. The record establishes an August 20, 2026 deadline for sending finalized ballot styles to print. APP104. An ordinary appeal cannot be briefed, decided, and implemented before then. Two Maricopa County judges have also reached irreconcilable conclusions about the same Defendants' duties under the same statute during the same election cycle. In *Groves v. Mayes*, No. CV2026-030860, the court held that omissions and misleading terminology similar to those alleged here violated § 19-125(D), granted mandamus, and compelled these same Defendants to revise the wording while preserving their authority over its precise formulation. APP127–APP134. Uniform statewide guidance is required now.

Petitioners therefore ask this Court to accept appellate special-action jurisdiction, vacate the judgment, declare the challenged wording noncompliant, enjoin its use, and compel prompt revision consistent with § 19-125(D).

ISSUES PRESENTED

1. Whether Petitioners—qualified electors who will personally receive and vote the challenged ballot, formally registered support for HCR 2001 through the Legislature's Request to Speak system while it was pending, and seek relief in the nature of mandamus—are "beneficially interested" under A.R.S. § 12-2021 and otherwise have standing.
2. Whether the superior court erred by holding that Respondents' discretion over wording forecloses mandamus even when § 19-125(D) imposes mandatory requirements, and the challenged wording reflects legal error and an abuse of discretion.
3. Whether the Proposition 144 descriptive title and "yes" statement violate § 19-125(D) by (a) omitting the measure's lead citizenship provisions, (b) adding a misleading comparison to federal law, and (c) replacing Section F's operative standard with a disputed prediction about future litigation.
4. What expedited and effective relief should issue before ballot materials are transmitted for printing.

RELATED CASES

The following proceedings are related through the same Defendants, the 2026 statewide ballot, or the construction and enforcement of A.R.S. § 19-125(D): *Groves v. Mayes*, Maricopa County Superior Court No. CV2026-
30860. On August 11, 2026, the court entered final declaratory,
injunctive, and mandamus relief concerning Proposition 212.

APP127–APP134. Petitioners are unaware of any appellate proceeding filed in *Groves* as of this filing. *Petersen v. Fontes*, Maricopa County Superior Court No. CV2026-30486. The superior court invalidated ballot wording for Proposition 145 and enjoined its use, but denied mandamus. Defendants initiated an appellate special action in this Court, *Fontes/Mayes v. Petersen/Montenegro*, Case No. CV-26-0267-T/SA.

JURISDICTION AND REASONS TO ACCEPT REVIEW

I. This Court has constitutional, statutory, and rule-based authority.

The Arizona Constitution authorizes this Court to issue writs of mandamus, review decisions of lower courts, and exercise "[s]uch other jurisdiction as may be provided by law." Ariz. Const. art. VI, § 5(1), (3), (4). A.R.S. §§ 12-2001 and 12-2021 implement that authority. RPSA 10(c) expressly provides that a judgment in an original special action may be challenged through an appellate special action when Rule 12 makes that procedure appropriate. RPSA 11(b)(3) authorizes an appellate special action in this Court seeking review "of a decision of any other court."

Petitioners request relief under RPSA 4(a)–(c). The superior court committed legal error by refusing to recognize Petitioners' beneficial interest, treating any drafting discretion as a complete bar to mandamus, and applying a test that did not enforce the statute's affirmative requirements. Those errors are an abuse of discretion and leave in place official action exceeding the authority granted by § 19-125(D).

II. No ordinary appeal is equally plain, speedy, and adequate.

The judgment was filed on August 12 and August 13, 2026. APP135, APP143. Lisa Marra, the State Election Director, declared that counties have a "hard deadline" of August 20 to

send finalized ballot styles to print. APP104. Military and overseas ballots must be transmitted by September 19, early voting begins October 7, and the election occurs November 3. APP022; APP074. No ordinary appeal through the Court of Appeals—and no later petition for review—could provide relief before the challenged wording is embedded in the ballot and publicity pamphlet.

The procedural path is settled. In *Quality Education*, this Court held that § 19-125(D) does not authorize a statutory expedited election appeal, treated the purported appeal as an appellate special action, and accepted jurisdiction because the issue was purely legal, statewide, and incapable of adequate review by ordinary appeal. 231 Ariz. at 206–07 ¶ 2. *Lane* likewise treated a ballot-language appeal as a special action because no adequate appellate remedy existed. 258 Ariz. at 464–65 ¶ 9. And in *Arizona for Abortion Access v. Montenegro*, 259 Ariz. 326, 329 ¶ 9 (2025), this Court accepted special-action jurisdiction over another ballotmaterial dispute because printing deadlines rendered ordinary appeal inadequate. The same reasoning applies with greater force on the compressed schedule here.

III. The Rule 12 factors overwhelmingly support acceptance.

This petition presents questions of statewide importance, RPSA 12(b)(4), concerning the official description every Arizona voter will receive for a proposed constitutional amendment. The questions will evade ordinary review and become functionally moot after printing and voting, RPSA 12(b)(5). They include issues of first impression under the restyled 2025 special-action rules and concerning the interaction among § 19-125(D), mandamus standing, and retained drafting discretion, RPSA 12(b)(3). The superior court ruling also cannot be reconciled with *AZPIA*, *Lane*, or the contemporaneous final judgment in *Groves*, supporting review under RPSA 12(b)(8).

Immediate review is also needed to resolve conflicting superiorcourt approaches before the same officers finalize all statewide ballots. *Groves* held that the defendants' drafting discretion did not bar mandamus and that generic catch-all language failed to disclose omitted substantial changes. APP131–APP134. The judgment here held the opposite: that drafting discretion defeated relaxed mandamus standing and that an unused twenty-two-word margin was irrelevant to a wholesale omission. APP139–APP141. Statewide ballot law cannot turn on which superior-court judge receives the case.

Rule 12(c)'s potential grounds for declining jurisdiction do not outweigh these considerations. Petitioners did not delay: they filed their superior court special action eight days after the final language and served Respondents the next business day. APP111–APP112. They file this Petition for Special Action in the early morning hours of August 14, less than a day after the superior court issued its final judgment. APP143.

The dispute is legal and turns on documents whose text is undisputed. Although the superior court entered final judgment after consolidating the preliminary-injunction hearing with the merits under Rule 65(a)(2), APP138, the case was not resolved under Civil Rules 12(b)(6), 12(c), or 56—the specific dispositive procedures identified in RPSA 12(c)(2). Ordinary appeal is not equally appropriate. Nor would declining review advance efficiency; it would ensure that the election occurs before appellate review is possible.

IV. Direct filing in this Court is necessary.

RPSA 11(c) requires an explanation for bypassing a court in which the petition might otherwise have been filed. Filing first in the Court of Appeals would consume the remaining time and likely require a second emergency proceeding here. The August 20 printing deadline is

essentially seven days after this filing.[1] Only this Court can provide immediate, uniform statewide guidance and a final resolution capable of implementation before printing. Direct review also follows the course this Court used in *Quality Education* and other statewide ballot-material disputes.

STATEMENT OF FACTS AND PROCEDURAL HISTORY

I. Proposition 144.

The Legislature passed HCR 2001 and filed it with the Secretary on June 15, 2026. APP013-APP014; APP035–APP038. The resolution's reference title begins "citizenship; identification; contributions; early voting." APP035. It proposes a new Article VII, Section 19 containing, among others, the following provisions:

> A. IN ADDITION TO ANY OTHER QUALIFICATIONS PRESCRIBED BY THIS CONSTITUTION OR BY LAW, ONLY CITIZENS MAY REGISTER AND VOTE IN ARIZONA ELECTIONS.
>
> B. FOREIGN NATIONALS MAY NOT CONTRIBUTE OR EXPEND MONEY OR ANYTHING OF VALUE TO INFLUENCE AN ARIZONA ELECTION, AND NO PERSON MAY KNOWINGLY ACCEPT SUCH A CONTRIBUTION.
>
> C. EVERY VOTER MUST SHOW VALID GOVERNMENT ISSUED PROOF OF IDENTITY BEFORE CASTING A BALLOT IN EACH ELECTION, WHETHER VOTING IN PERSON OR BY ANY OTHER METHOD, AS PRESCRIBED BY LAW.
>
> D. ARIZONA ELECTIONS SHALL BE DECIDED SOLELY BY THE VOTES OF ELIGIBLE CITIZEN VOTERS.
>
> E. TO PREVENT ADMINISTRATIVE DELAYS AND ENSURE TIMELY AND ACCURATE ELECTION RESULTS, ON ELECTION DAY ALL VOTERS SHALL BE PROVIDED THE OPTION TO HAVE THEIR BALLOT TABULATED AT THEIR VOTING LOCATION, AS PRESCRIBED BY LAW.
>
> F. THE PEOPLE AND THE LEGISLATURE MAY ENACT LAWS GOVERNING ELECTIONS, INCLUDING EARLY VOTING AND MAIL VOTING, PROVIDED SUCH LAWS ARE RATIONALLY CONNECTED TO A LEGITIMATE STATE INTEREST INCLUDING TIMELY AND ACCURATE ELECTION RESULTS, EFFICIENT ELECTION ADMINISTRATION,

[1] The filing date of this Petition is August 14, but because it is being filed in the early morning hours before normal Court hours, Respondents include Friday, August 14 in their count.

ELECTION SECURITY, AND PRESERVING PUBLIC CONFIDENCE IN THE INTEGRITY OF ELECTIONS.

APP036. Other provisions not at issue here require implementation funding, establish an effective date, and provide severability. APP036– APP037.

II. The challenged official wording.

The Secretary prepared, and the Attorney General approved, the following descriptive title:

> REQUIRES ALL VOTERS, INCLUDING VOTERS WHO VOTE BY MAIL, TO SHOW GOVERNMENT-ISSUED ID TO VOTE IN EACH ELECTION; MAKES OTHER CHANGES TO ELECTION ADMINISTRATION AND CAMPAIGN FINANCE PROHIBITIONS.

APP031. The title uses twenty-eight words. It does not mention citizenship, prohibitions on foreign funding to influence elections, or guaranteed on-site tabulation. The "yes" statement states the following:

> A "yes" vote shall have the effect of amending the Arizona Constitution to: (1) require voters to show proof of identity when voting in each election, including when voting by mail; (2) changing existing proof of identity requirements to limit acceptable documentation to government-issued ID; (3) require election officials to provide all voters the option to have their ballot tabulated at their voting location on election day; (4) prohibit foreign nationals from contributing or spending to influence elections in Arizona and prohibit anyone from knowingly accepting such contributions, similar to prohibitions that already exist in federal law; (5) create a new standard for judicial review of election laws under the Arizona Constitution, which may make it harder to challenge election laws; and (6) require the legislature to appropriate money necessary to implement these provisions.

Id. The "yes" statement lists six effects—two concerning identification, and one each concerning on-site tabulation, foreign-national spending, judicial review, and funding. *Id*. It omits any mention of Sections A and D. Clause (4) claims that the foreign-national prohibition is "similar to prohibitions that already exist in federal law." Clause (5) claims that the amendment would "create a new standard for judicial review of election laws under the Arizona Constitution, which may make it harder to challenge election laws." *Id*.

Before the language became final, counsel for the Senate President and House Speaker notified Respondents of the citizenship omission, the federal-law comparison, and the litigation prediction, and requested correction. APP039–APP054. Respondents revised other wording but retained the challenged defects. APP104.

III. Petitioners' direct and measure-specific interests.

Petitioners are Arizona citizens, qualified electors, and Maricopa County residents who are entitled and intend to vote on Proposition 144. APP006–APP009. Each will personally receive and vote an official ballot containing the challenged language. *Id*. Each supported HCR 2001 while the Legislature considered it and contemporaneously registered that support through the Legislature's official Request to Speak system. *Id*. Petitioners were three of only 264 individuals statewide who registered support through that system. APP108. Each intends to advocate publicly concerning Proposition 144. APP009.

IV. The superior court proceeding and final judgment.

Petitioners filed their verified complaint, preliminary-injunction motion, and order-to-show-cause application on July 31. APP003– APP078. On August 7, Respondents filed a nineteen-page opposition and the declaration of State Election Director Lisa Marra. APP079–APP105. Marra stated that counties had a hard August 20 deadline to send ballot styles to print, but did not identify any Proposition 144-specific page increase, cost, unavailable space, or inability to implement a correction by that date. APP103–APP104. Petitioners filed their reply on August 9, APP106-APP119, the superior court heard oral argument on August 10, APP120-APP121, and Petitioners submitted *Groves* as supplemental authority on August 11. APP122–APP134.

Pursuant to the parties' stipulation at oral argument, the court consolidated the preliminary-injunction hearing with the merits under Civil Rule 65(a)(2) and entered final

judgment on August 12 and August 13. APP120; APP138; APP142; APP143. It held that Petitioners lacked ordinary standing because their injury was generalized and that their Request to Speak participation did not make it particularized. APP139. It then declined to apply the relaxed mandamus standard because, in its view, Respondents' drafting discretion made mandamus unavailable. *Id*. On the merits, it concluded that citizenship need not be mentioned; that the federal-law comparison was permissible because "similar" did not mean "identical"; and that the words "may make it harder" were permissible because that was one possible effect of Section F. APP140–APP141.

On August 13, 2026 the court issued a minute entry in response to Petitioners' Notice of Supplemental Authority, "find[ing] no basis to alter its ruling based on this supplemental authority" and "affirm[ing] its August 12, 2026, ruling denying Plaintiffs' request for relief" and ordering "that this minute entry disposes of all outstanding claims and issues in this case. Because no further matters remain pending, the Court signs this minute entry as a final judgment entered pursuant to Ariz. R. Civ. P. 54(c)." APP143.

STANDARD OF REVIEW

Standing, statutory interpretation, and the legal sufficiency of ballot language present questions of law reviewed de novo. *AZPIA*, 250 Ariz. at 61 ¶ 8; *Lane*, 258 Ariz. at 465 ¶ 10. A court abuses its discretion when it commits legal error or applies an incorrect legal standard. *Arizona for Abortion Access*, 259 Ariz. at 329 ¶ 10. The superior court entered final judgment on a documentary record after consolidating the merits under Rule 65(a)(2); no disputed factual finding is material to the questions presented.

ARGUMENT

I. Petitioners Have Standing.

A. Petitioners are "beneficially interested" under the mandamus statute.

A.R.S. § 12-2021 authorizes relief on the verified complaint of a "party beneficially interested." That phrase is applied liberally "to promote the ends of justice," and reflects a legislative choice broadly to allow members of the public to compel performance of public duties. *AZPIA*, 250 Ariz. at 62 ¶¶ 10–11. This Court therefore held that citizens and voters seeking ballot instructions compliant with Arizona law had a sufficient beneficial interest. *Id*. ¶ 12.

That holding controls. Section 19-125(D) exists to protect voters who receive the State's official description at the moment of decision. Petitioners are members of that protected class; each will personally receive and vote the challenged ballot. APP009. The superior court nevertheless treated the duty as if it existed only in the abstract, APP139, seemingly requiring Petitioners to show that they personally had been deceived. But *AZPIA* did not require subjective confusion. Nor could it: mandamus enforces an official duty, and a citizen's knowledge of the official's noncompliance does not eliminate the beneficial interest in lawful performance.

Quality Education confirms the point. The challenger there was the political committee supporting the measure and necessarily understood its text. 231 Ariz. at 206 ¶ 1. This Court did not regard that knowledge as defeating judicial review of the official wording. The statutory injury is not fraud on an uninformed plaintiff; it is the State's use of ballot language that allegedly fails the law enacted for voters' benefit.

The superior court's reasoning was also circular. It refused the relaxed standing standard because Respondents had drafting discretion, and Petitioners supposedly could not obtain mandamus. APP139– APP140. But whether the challenged wording violates the mandatory

boundaries of § 19-125(D) *is the merits question*. Standing cannot turn on resolving that question against Petitioners first. "For purposes of determining standing, [courts] assume that the plaintiffs are correct on the merits…." *Montenegro v. Fontes*, 260 Ariz. 443, 448 ¶ 19 (2025) (citing *Brewer v. Burns*, 222 Ariz. 234, 237 38 ¶¶ 11–12, 14 (2009)). "[D]efendants cannot defeat standing merely by assuming they will ultimately win." *Brewer*, 222 Ariz. at 238 ¶ 14.

AZPIA asks whether plaintiffs are beneficially interested in the performance of the asserted duty; it does not require them to prove the violation as a jurisdictional prerequisite.

B. Petitioners also alleged a particularized, preexisting relationship with Proposition 144.

Petitioners are not "three random individuals," as Respondents argued below. APP080. Their names appear in the official record of the legislative process that produced Proposition 144. Each used the Legislature's Request to Speak system while HCR 2001 was pending to formally register support for that specific text. APP006–APP009. Only 264 individuals statewide registered support through that system, and Petitioners are three members of that finite, objectively identifiable group. APP108.

Petitioners' relationship with the measure is formal, contemporaneous, measure-specific, and predates both the challenged wording and the lawsuit. They personally participated in the governmental process that produced the referral, placed their names behind the text the Legislature adopted, intend to continue advocating for it, and will confront the State's allegedly inaccurate description when they vote. APP009. The challenged conduct concerns the State's final official presentation of the same proposal they formally supported. That direct continuity distinguishes them from an undifferentiated citizen asserting only a generalized disagreement about government compliance.

Petitioners suffer particularized injury in five distinct respects.

First, Petitioners' RTS registrations are themselves official, measure-specific acts of political expression. Each Petitioner placed his or her name in the legislative record as supporting the particular text of HCR 2001. Respondents then attached to that same measure an official ballot description that omits HCR 2001's lead citizenship provisions and adds disputed characterizations not contained in the resolution. The result is a government-created distortion of Petitioners' own recorded position: anyone who compares the RTS record with the State's ballot materials is invited to understand Petitioners as supporting the measure as Respondents have described it, rather than the text Petitioners actually endorsed. That misattribution is personal to the identified speakers whose names appear in the legislative record; it is not an undifferentiated injury shared by voters who never formally associated themselves with HCR 2001.

Second, Respondents' wording also imposes a concrete correctivespeech burden on Petitioners. Petitioners had already publicly associated themselves with HCR 2001 and intended to advocate for its approval before Respondents published the challenged language. They must now divert time, resources, and limited opportunities to communicate with voters from explaining why Proposition 144 should pass to correcting the State's account of what Proposition 144 does. They must explain why the official title omits citizenship, why the federal-law comparison obscures Section B's distinct reach, and why clause (5) states a contested prediction instead of Section F's operative language. This is not the ordinary burden of answering a political opponent. The challenged account is the State's own description, printed beside the voting choices and carrying the imprimatur of the Secretary of State and Attorney General. The resulting need to undertake additional corrective speech is a present burden caused by Respondents and borne particularly by Petitioners as identified, active proponents of HCR 2001.

Third, the challenged language also threatens Petitioners' individual credibility and reputations. Petitioners are publicly identified supporters of HCR 2001. Yet the State's official description contradicts the account Petitioners must give when explaining the measure accurately. When Petitioners identify citizenship as a lead feature, the ballot's silence may cause voters to believe Petitioners have exaggerated or misrepresented the measure. When Petitioners explain Section B's extension to ballot-measure spending or Section F's actual operative terms, the State's different account may cause audiences to discount Petitioners' accuracy in favor of the description carrying official governmental authority. That injury attaches to Petitioners because their names and reputations are already associated with HCR 2001. An ordinary voter who has never publicly endorsed the measure does not suffer the same impairment of personal credibility.

Fourth, Petitioners' injury also arises from Respondents' frustration of completed, formal participation in the legislative process. Petitioners used the Legislature's designated RTS mechanism while HCR 2001 was pending to urge lawmakers to refer that specific constitutional text to Arizona voters. The Legislature did so. Respondents' subsequent use of an official description that suppresses principal provisions and substitutes disputed commentary devalues the concrete governmental participation Petitioners already undertook: the proposal presented to voters through the State's most authoritative description is materially different from the proposal Petitioners placed their names behind during the legislative process. Petitioners claim no legal entitlement to electoral success. Their injury is that Respondents have impaired the statutory process through which the particular legislative product Petitioners formally supported must be transmitted to the electorate.

Fifth, Respondents' conduct directly burdens the votes Petitioners themselves intend to cast. The State will print beside each Petitioner's voting choices an official statement purporting to define the legal effect of a "yes" vote. Petitioners must therefore either cast a "yes" vote under an official description that omits the provisions they prominently supported and adds characterizations they did not endorse, or refrain from voting for the constitutional text they formally backed through RTS. Their prior participation makes this conflict concrete: one official governmental record identifies the text Petitioners supported, while another assigns a materially different meaning to the votes they will cast for that text. The injury is not that Petitioners may be deceived. It is that the State will officially misdescribe the legal meaning of Petitioners' own votes.

C. The superior court relied on a nonprecedential court of appeals decision while ignoring binding precedent of this Court.

The superior court relied on the nonprecedential court of appeals memorandum decision *Arizona Free Enterprise Club v. Fontes*, 2025 WL 2462952, at *4 (Ariz. Ct. App. Aug. 27, 2025), which was cited by Respondents. APP139. That decision is distinguishable. It concerned an Elections Procedures Manual provision and a plaintiff who alleged no interest beyond disagreement with the Secretary's legal interpretation. Here, Petitioners will personally receive the challenged ballot, possess a documented preexisting relationship with the precise measure, and seek enforcement of express statutory content requirements. Moreover, *AFEC* acknowledged that an abuse of discretion can support mandamus; the present complaint specifically invokes legal error and abuse of discretion under RPSA 4(c).

Rather, this case closely parallels *AZPIA*, and the plaintiffs here have standing for the same reason the plaintiffs had standing in that case. There, an organization and an individual voter who was simply "on Maricopa County's permanent early voter list" sought to compel the

Recorder to provide overvote instructions complying with Arizona law. *AZ-PIA*, 250 Ariz. at 61 ¶ 2. This Court held that "[Arizona] citizens and voters" who "seek to compel the Recorder to perform his non-discretionary duty to provide ballot instructions that comply with Arizona law" have "shown a sufficient beneficial interest to establish standing." *Id*. at 62 ¶¶ 2, 12. The plaintiff voter's only asserted connection to the challenged instruction was that he would receive a mail-in ballot containing it; he alleged no special expertise, no legislative history with the instruction, and no distinct financial or professional stake beyond that of any other early voter. *Id*.

Petitioners' showing here is considerably stronger. Like the voter in *AZPIA*, Petitioners will personally receive the challenged ballot language and must vote on it, but unlike the voter in *AZPIA*, Petitioners also supported Proposition 144 while it was pending as HCR 2001 and registered that support through the Legislature's Request to Speak system— a documented, preexisting relationship with the precise measure whose ballot description they challenge. And, as in *AZPIA*, Petitioners seek to compel Respondents to perform a non-discretionary duty to provide ballot language that complies with Arizona law. In *AZPIA*, it was "ballot instructions" and here it is "ballot language." Neither the superior court nor the Respondents have explained how there is any meaningful distinction between the unlawful "ballot instructions" of *AZPIA* and the allegedly unlawful ballot language here.

AZPIA expressly rejected the argument that such claims amount to only a "generalized concern about the election process," holding instead that the mandamus standard "reflects the Legislature's desire to broadly afford standing to members of the public to bring lawsuits to compel officials to perform their public duties." *Id*. ¶¶ 9, 11 (citation omitted). Because Petitioners' interest in receiving a statutorily compliant ballot description is at least as concrete

and particularized as the interest the Court found sufficient in *AZPIA*, the same standing conclusion should result here.

D. The controversy also supports declaratory standing, and prudential standing should be waived if necessary.

Respondents finalized the wording, intend to place it on Petitioners' ballots, and refused correction. APP009; APP031; APP039–APP054. That creates a concrete controversy between adverse parties concerning their present legal rights and duties. See *Arizona Creditors Bar Association, Inc. v. State*, 257 Ariz. 406, 410 ¶ 12 (App. 2024). The requested declaratory and injunctive relief would redress the injury by preventing use of the allegedly unlawful official wording, and Respondents therefore have standing under A.R.S. §§ 12-1831 and -1832.

Alternatively, in Arizona, standing is prudential, not constitutional, and may be waived for issues of great public importance. *Sears v. Hull*, 192 Ariz. 65, 71 ¶ 25 (1998). A statewide constitutional amendment, conflicting superior-court judgments, and an expiring window for any review present the paradigm case for waiver. Declining review on standing would make § 19-125(D) practically unenforceable whenever no institutional sponsor elects to sue.

II. The Superior Court Erred by Treating Limited Drafting Discretion as Immunity from Special-Action Relief.

The judgment conflates discretion over how to comply with discretion over *whether* to comply. Section 19-125(D) does not merely authorize the Secretary to publish words of his choosing. It commands that the title "*shall* contain" a summary of principal provisions and that the vote statements "*shall* … stat[e] the essential change in the existing law." Publication of any title and any six clauses does not fulfill that mandatory duty if their content falls outside those statutory boundaries.

Arizona law has long distinguished between discretion over the means of performing a statutory duty and discretion whether to satisfy that duty at all. When an officer "is bound to act

in some manner, even though he have discretion as to how he shall act, he can be compelled to act." *State Bd. of Barber Exam'rs v. Walker*, 67 Ariz. 156, 165 (1948) (cleaned up). Thus, "a writ of mandamus …. will always lie to require an administrative body to exercise its discretion which the law makes it its duty to perform, even though it cannot require it to be exercised in any particular manner." *Arizona State Highway Comm'n v. Superior Ct. of Maricopa Cnty.*, 81 Ariz. 74, 77 (1956). *See also Miceli v. Indus. Comm'n of Arizona*, 135 Ariz. 71, 73 (1983) ("mandamus may be used to compel an officer, board or commission to take action even though such action is discretionary, it cannot be used to require that such discretion be exercised in a particular manner" (citations omitted)); *Cagle Bros. Trucking Serv. v. Arizona Corp. Comm'n*, 96 Ariz. 270, 272 (1964) ("Mandamus lies to require an administrative body to exercise its discretion which it has the duty to perform, even though it cannot require it to [be] exercised in any particular manner."); *Maricopa Cnty. Mun. Water Conservation Dist. No. 1 v. La Prade*, 45 Ariz. 61, 67 (1935) ("where as a matter of law [a public officer] is bound to act in some manner, even though he have discretion as to how he shall act, he can be compelled to act" (citations omitted)); *Kahn v. Thompson*, 185 Ariz. 408, 411 (App. 1995) ("Mandamus may compel the performance of a ministerial duty or compel the officer to act in a matter involving discretion, but it may not designate how that discretion shall be exercised.")

Section 19-125(D) fixes the legally required ends through two operative "shall" commands: the descriptive title "*shall* contain a summary of the principal provisions of the measure," and the yes/no vote-effect blanks "*shall* be filled" with phrases "stating the essential change in the existing law." A.R.S. § 19-125(D) (emphasis added). The Secretary retains discretion over the linguistic means of satisfying those commands—including word choice, syntax, sequencing, and emphasis—and more than one formulation may comply. But he has no

discretion to issue a title that does not summarize the principal provisions or a vote-effect statement that does not state the essential changes. The duty is not merely to draft and publish some language; it is to draft and publish language possessing the content the Legislature mandated. Performing the shell of a statutory task while violating its substantive requirements is nonperformance, not protected discretion. If the Secretary issues ballot language that does not comply with the statute's requirements, then he has failed to comply with his mandatory duty under the statute.

The superior court blurred that distinction when it concluded that Respondents "fulfilled any non-discretionary duties under § 19-125(D) by publishing and approving the ballot language." APP140. That reasoning effectively treats the mandatory duty as satisfied by the physical act of publication, regardless of whether the published language contains what the statute says it "shall contain." But an official does not discharge a statutory duty merely by producing a document bearing the required label. An officer has some element of discretion in carrying out virtually every mandatory duty.

The superior court's approach would create an exception that swallows the rule because virtually every mandatory official duty entails some judgment in its execution. The Highway Commission was legally required to establish a school crosswalk but retained discretion to select its precise location. *Ariz. State Highway Comm'n*, 81 Ariz. at 77–78. The Board of Dispensing Opticians was required to decide whether applicants' statutory experience had produced the required minimum skills, while retaining discretion to evaluate the evidence and reach that decision; a court could compel the Board to decide but could not dictate its answer. *State Bd. of Dispensing Opticians v. Carp*, 85 Ariz. 35, 38–39 (1958). The Legislative Council was required to prepare an impartial ballot-measure analysis but retained editorial discretion over the precise

wording; when the Council adopted a noncompliant analysis, this Court directed it to reconsider the matter and adopt a compliant analysis without writing the replacement language itself. *Fairness & Accountability in Ins. Reform v. Greene*, 180 Ariz. 582, 592–93 (1994). And in *Walker*, the Barber Board could investigate whether an applicant satisfied the lawful licensing criteria, but it could not use that discretion to invent an additional qualification; once the statutory criteria were met, the Board had a mandatory duty to issue the certificate. 67 Ariz. at 163–65. And a county recorder has a mandatory duty to provide early voters with an overvote instruction that complies with the Elections Procedures Manual, yet he necessarily exercises judgment in the wording, formatting, and placement of that instruction on the ballot materials—and this Court still enforced the duty by mandamus rather than treating the recorder's stylistic latitude as license to disregard the manual's substantive command altogether. *AZPIA*, 250 Ariz. at 62–65 ¶¶ 12, 26. These decisions apply the same principle: the Legislature may prescribe the required end while entrusting an official with discretion over the means. Courts enforce the end without commandeering the means.

In each instance, the presence of some interstitial discretion in the details of performance never suggested that the officer could decline to perform the duty, or perform it in a manner that flouts the statute's express terms.

The same principle governs here: the Secretary may exercise judgment in choosing among compliant formulations of the descriptive title and yes/no statements, but that limited discretion in wording does not permit him to omit a measure's principal provisions or to substitute argumentative commentary for the "brief phrase … stating the essential change in the existing law" that the statute requires. A.R.S. § 19-125(D). If the mere presence of some discretion in execution were sufficient to convert a mandatory duty into an unenforceable one, no

statutory duty phrased in terms of "shall" could ever be enforced by mandamus, because virtually all such duties require some exercise of judgment in their performance. *Walker*, 67 Ariz. at 165.

That principle applies even though the Secretary has already exercised his drafting judgment. The current Special Action Rules authorize relief not only when an official "failed to exercise discretion that they have a duty to exercise," but also when an official has "made a decision that was arbitrary and capricious or an abuse of discretion," including a legal error. RPSA 4(a), (c). Those provisions would be meaningless if an official could immunize an unlawful decision from review merely by acting and then invoking the discretion employed in doing so. The relevant question, therefore, is not whether the Secretary exercised judgment when selecting the Ballot Language; of course he did. The question is whether the resulting language remained within § 19-125(D)'s mandatory statutory boundaries. If it did not, then the Secretary did not perform the duty the statute imposed. The Court may remedy that failure by identifying the defects, enjoining the unlawful formulation, and compelling Respondents to exercise their retained drafting and approval discretion again within the statute's limits.

The contemporaneous *Groves* superior court judgment reached exactly that result under § 19-125(D). After finding material omissions and misleading terminology, the court granted mandamus compelling the Secretary and Attorney General, "in their respective statutory roles," to revise the language while expressly preserving their authority over the precise wording. APP133–APP134. That remedy enforced the mandatory duty without converting the court into the drafter.

The judgment here effectively deletes the statutory content commands. It reasoned that Respondents fulfilled their nondiscretionary duties because the Secretary prepared a title and the

Attorney General approved it. APP139-APP141. Under that view, "shall contain a summary of the principal provisions" means only "shall publish a title," and "stating the essential change" means only "shall publish some effect statement." Courts may not render enacted language superfluous. *Nicaise v. Sundaram*, 245 Ariz. 566, 568 ¶ 11 (2019). The statute's substantive requirements are mandatory and judicially enforceable.

Nor does deference eliminate review. *Quality Education* requires due deference but expressly subjects the result to judicial scrutiny for "misleading, inaccurate, lacking in neutrality, or argumentative." 231 Ariz. at 208–9 ¶¶ 6–12 (cleaned up). *Lane* describes the judiciary as the statutory "backstop." 258 Ariz. at 466 ¶ 17. A backstop that cannot act whenever drafting involves judgment is no backstop at all.

III. The Challenged Wording Violates A.R.S. § 19-125(D).

A. The superior court applied an incomplete legal test.

Section 19-125(D) imposes two affirmative duties. The descriptive title must summarize "the principal provisions." The "yes" and "no" statements must state "the essential change in the existing law." APP011– APP013. The superior court instead asked almost exclusively whether the words were literally false or clearly misleading. APP139–APP141. That formulation omits the statute's affirmative content requirements and the full *Quality Education/Lane* standard.

Quality Education not only held that language may not be false or clearly misleading, but it also held that the language cannot be "misleading, inaccurate, lacking in neutrality, or argumentative." 231 Ariz. at 208–9 ¶¶ 6–10 (cleaned up). *Lane* applied that standard and invalidated wording that used a superficially plausible comparative term but failed accurately to communicate the measure's legal operation and the essential effect of a "no" vote. 258 Ariz. at 467–69 ¶¶ 21–29. It also explained that *Molera v. Hobbs*, 250 Ariz. 13 (2020), is instructive in defining "principal provisions" under § 19-125(D). *Lane*, 258 Ariz. at 468 ¶ 26. Principal

provisions are a measure's "most important," "consequential," and "primary features," and omission can obscure their basic thrust. *Molera*, 250 Ariz. at 19–20 ¶¶ 9–13.

The standard is deferential but meaningful. Courts do not revise wording merely because another formulation is clearer. *Quality Educa-tion*, 231 Ariz. at 209 ¶ 12. However, they must act when the official description omits a substantial legal change or supplies a misleading label. *Groves* demonstrates that distinction: it upheld the omission of a subsidiary inflation formula but required disclosure of substantial enforcement and government-control changes and struck terminology that conflated legally distinct programs. APP130–APP134.

B. The title and "yes" statement omit Proposition 144's principal citizenship provisions and an essential legal change.

Every objective indicator establishes that Sections A and D are principal. Citizenship is the first subject in HCR 2001's reference title. APP035. Section A is the first operative sentence. APP036. Section D separately commands that Arizona elections be decided solely by eligible citizen voters. *Id*. The subject concerns who may register, who may vote, and whose votes may decide an election—questions at the core of Article VII.

Yet the descriptive title says nothing about citizenship. APP031. Its catch-all reference to "other changes to election administration" does not summarize a constitutional qualification for registration and voting. *Groves* held that "other rules and restrictions" did not adequately disclose omitted substantial provisions. APP131. The same reasoning applies here. A generic announcement that other unidentified changes exist is not a summary of those changes.

Space cannot explain the omission. The title uses twenty-eight of fifty available words. APP017; APP031. In Exhibit 2 to their Complaint, Petitioners supplied a forty-one-word alternative summarizing citizenship, identification, tabulation, foreign spending, the election-law standard, and funding. APP033. Exhibit 2 is not offered as the only permissible wording; it

demonstrates that the word limit did not force the omission. Nor was the length of HCR 2001 an impediment to a fully descriptive title. *Quality Education* considered a fourteen-page, technically complex tax measure and emphasized its complexity. 231 Ariz. at 208 ¶ 9. HCR 2001's operative provisions fit on roughly one page. APP036.

The six-part "yes" statement makes the omission more misleading. Its numbered clauses give the appearance of a complete inventory. They describe identification twice, then tabulation, foreign spending, judicial review, and funding, while omitting Sections A and D entirely. APP031. A voter who reads every word is affirmatively led to believe citizenship is not among the amendment's effects.

The superior court accepted Respondents' assertion that the "Secretary's description focuses on requirements that do not exist under state or federal law." APP140. That does not answer either statutory duty. The Respondents are wrong for at least four reasons.

First, the descriptive title must summarize principal provisions, not merely novel provisions. Nothing in § 19-125(D) makes novelty the definition of "principal." "Statutory terms must be given effect in accordance with their commonly accepted meanings, unless the legislature has offered its own definition of the words or it appears from the context that a special meaning was intended." *Planned Parenthood Arizona, Inc. v. Mayes*, 257 Ariz. 137, 142 ¶ 16 (2024) (cleaned up). In construing the meaning of statutes, courts "may refer to established and widely used dictionaries" to determine "commonly accepted meanings[.]" *Id*. (cleaned up). Common definitions of "principal" are "[c]hief; primary; most important," *Principal*, Black's Law Dictionary (12th ed. 2024), and "[f]irst or highest in rank or importance." *Principal*, American Heritage Dictionary (5th ed. 2022). Citizenship is a principal provision of Proposition 144 under any reasonable interpretation.

Second, the measure changes existing law. Article VII, § 2(A) currently makes citizenship a qualification for voting, but the citizenship qualification for registration rests in statute, A.R.S. § 16-101(A)(1). Section A would constitutionalize the registration requirement. Section D would add a separate constitutional command with no current textual counterpart. And constitutional entrenchment changes legal force and durability: ordinary legislation could no longer revise those rules; another voter-approved amendment would be required. Ariz. Const. art. XXI, § 1.

Third, Section D cannot be dismissed as the logical result of Section A. The Legislature enacted two separate provisions using different language. Section A concerns who may register and vote; Section D concerns whose votes may decide an election. The surplusage canon requires meaning for both. *Nicaise*, 245 Ariz. at 568 ¶ 11. Respondents may argue the provisions pursue an objective reflected in existing law, but that does not permit the State to erase separately enacted constitutional text from its official inventory.

Fourth, Respondents' novelty rationale is also inconsistent with their approach to Proposition 212, which has official language that prominently states—twice—that ESA funds may not be spent on "luxury items" and repeats "luxury goods," even though current law already forbids such use of ESA funds. Ariz. Sec'y of State, 2026 General Election Ballot Measure Language at 11 (2026), https://tinyurl.com/2s3nekms.[2] Proposition 212 is a separate initiative that would amend Arizona's Empowerment Scholarship Account ("ESA") program. The ESA program provides eligible families state-funded accounts that may be used for specified educational expenses. Existing law already states that account monies may be used "only for" the expense categories enumerated in A.R.S. § 15-2402(B)(4), including tuition, textbooks, tutoring,

[2]Petitioners request judicial notice of this official publications. *AZPIA*, 250 Ariz. at 65 ¶ 28 n.2; *Arizonans for Second Chances, Rehabilitation, and Pub. Safety v. Hobbs*, 249 Ariz. 396, 403 ¶ 12, n.1 (2020).

curricula, standardized tests, specified educational services, and certain educational technology. The Department of Education must also maintain an online database identifying allowable and disallowed expense categories. A.R.S. § 15-2403(L)(1). The Department's current handbook lists those disallowed expenses in its section titled "ESA unallowable purchases," which excludes entertainment, home-theater equipment, televisions, telephones, video-game consoles, amusement-park tickets, commercial-grade appliances such as espresso machines and freeze-dryers, jewelry and precious metals, large appliances, motorized vehicles, hotel and lodging expenses, home furnishings, swimming pools, saunas, and numerous other noneducational purchases. Ariz. Dep't of Educ., *ESA 2025–2026 Parent Handbook* at 40–42, https://tinyurl.com/yce7yer2.[3] Whatever incremental breadth or clarification Proposition 212 may add, current law plainly already excludes the obvious categories an ordinary voter would associate with "luxury goods."

Yet the official Proposition 212 descriptive title tells voters that the initiative "PROHIBITS ESA FUNDS FROM BEING SPENT ON NONEDUCATIONAL OR LUXURY ITEMS," and the "yes"-vote statement repeats that the measure would prohibit "luxury goods." Ariz. Sec'y of State, *2026 General Election Ballot Measure Language* at 11 (2026).

The same Respondents who are attempting here to justify their exclusion of provisions that they claim are not novel did the exact opposite for the ballot language for Proposition 212: they chose to spend scarce descriptive-title and "yes"-statement words on a prohibition substantially already imposed by existing law.

That contemporaneous treatment puts the lie to Respondents' asserted drafting principle about focusing only on novel provisions. Here, Respondents say that overlap with existing law

[3]Petitioners request judicial notice of this official publications. *See supra*, note 2.

makes the citizenship provisions unworthy of mention—even though Proposition 144 would elevate those rules into the Constitution. In Proposition 212, the same officials treated reinforcement of an existing expenditure restriction as important enough to place in both the fifty-word title and the "yes"-vote statement. Respondents cannot plausibly apply "novelty" as a disqualifying criterion in one proposition while treating codification or reinforcement of an existing restriction as a headline feature in another proposition on the same ballot.

Thus, overlap did not prevent Respondents from featuring a provision twice when describing Proposition 212. Their opposite rule here, coupled with allegations that the Secretary opposed Proposition 144 and supported a competing initiative, APP015-APP016 ¶¶ 69–75, supports an inference of selective emphasis. The Court need not decide motive, but it also should not accept an inconsistent post hoc rationale. Courts are "not required to exhibit a naiveté from which ordinary citizens are free." *Dep't of Com. v. New York*, 588 U.S. 752, 785 (2019) (cleaned up).

C. The federal-law comparison is extraneous and materially misleading.

Clause (4) begins with an adequate description of Section B and then adds that it is "similar to prohibitions that already exist in federal law." APP031. The added phrase appears nowhere in HCR 2001. It is not needed to tell voters what Section B prohibits; the preceding words already do that. Its function is evaluative—to suggest that the amendment substantially duplicates an existing protection.

The comparison withholds the difference that matters most. Federal law prohibits foreign nationals from making contributions or expenditures in connection with candidate elections. 52 U.S.C. § 30121. As the three-judge court explained in *Bluman v. FEC*, federal law "permits foreign nationals to make contributions and expenditures related to ballot initiatives." 800 F. Supp. 2d 281, 291–92 (D.D.C. 2011), aff'd mem., 565 U.S. 1104 (2012). The Federal Election

Commission has accordingly recommended that Congress extend the prohibition to state and local initiatives, referenda, and recalls. Federal Election Commission, *Legisla-tive Recommendations* 5–6 (Dec. 15, 2022), https://tinyurl.com/3hhkz836.[4] Proposition 144 closes that gap by reaching anything of value spent "to influence an Arizona election." APP036. Foreign spending that could be directed solely at the Proposition 144 contest is itself an example of conduct outside the federal prohibition but within Section B.

The comparison also obscures the protection's source and durability. Congress may amend or repeal 52 U.S.C. § 30121 without Arizona voters' consent. Proposition 144 would establish an independent prohibition in the Arizona Constitution that would survive any federal repeal and could not be removed by ordinary state legislation. Even where the two regimes overlap, the amendment creates a distinct sovereign and constitutionally entrenched safeguard.

The superior court held the comparison permissible because "similar" does not mean "identical." APP141. That sets the bar too low. *Lane* rejected a term that had a plausible comparative premise because it misled voters about the measure's legal operation. 258 Ariz. at 467–69 ¶¶ 21–29. *Groves* similarly held that "school voucher program" was misleading because it encouraged voters to treat legally distinct programs as equivalent. APP132–APP133. Section 19-125(D) does not authorize any broadly defensible observation. It requires a statement of the essential change in Arizona law. If Respondents wish to argue that Section B is unnecessary because federal law is similar, A.R.S. § 19-124 provides the forum for advocacy.

D. Clause (5) substitutes a disputed litigation forecast for Section F's operative terms.

Section F provides that "the people and the Legislature may enact laws governing elections" if those laws are "rationally connected to a legitimate state interest," and it identifies four interests. APP036. It does not use the term "rational basis." It does not mention *Anderson/*

[4]Petitioners request judicial notice of this official publications. *See supra*, note 2.

Burdick, strict scrutiny, judicial review, or the displacement of other constitutional protections. It does not say litigation will become harder.

The ballot language omits the rational-connection language, the enumerated interests, and the people's lawmaking authority. Instead, it editorializes with a prediction that the amendment "may make it harder to challenge election laws." APP031. Respondents' opposition in the superior court confirmed the predictive nature of that wording: it equated "rationally connected" with rational-basis review, compared that assumed standard to *Anderson/Burdick*, and argued lawsuits would "very likely" become harder. APP095–APP097.

That conclusion requires multiple unresolved legal judgments: that the new phrase is identical to conventional rational-basis doctrine; that Section F displaces rather than supplements *Anderson/Burdick*; that it overrides scrutiny otherwise required by independent provisions of the Arizona Constitution; and that future courts will apply it to an unspecified class of challenges in a manner unfavorable to plaintiffs. No court has decided those issues. Reasonable lawyers may debate them. The debate is precisely why the conclusion does not belong in the State's official wording.

The superior court found the language acceptable because the prediction "can reasonably be regarded as an attempt to provide necessary and appropriate information to the voting public." APP141. The court also acknowledged that "it is unknown precisely how the language will be applied or interpreted by the courts," *id.*, but never attempted to reconcile this uncertainty with § 19-125's requirement that the yes/no effect statements must describe the provision's "essential change in the existing law."

Uncertainty is not a license to forecast; it is a reason to state the text. The word "may" concedes that "harder" is one possible downstream consequence rather than the legal change

enacted by a "yes" vote. Section 19-125(D) directs Respondents to state the change, not issue an advisory prediction about future judges' decisions.

Lane again supplies the governing analogy. There, the official wording used a downstream comparative label rather than accurately communicating the new tax's legal mechanism and the effect of a "no" vote. 258 Ariz. at 467–69 ¶¶ 21–29. Here, the proper subject is Section F's rational-connection requirement and enumerated interests. Whether those terms will make litigation easier or harder belongs in campaign argument, not the ballot.

IV. Laches and the Equities Do Not Bar Relief.

The superior court deemed laches moot, APP140, but Respondents will likely renew the defense. It fails because laches requires unreasonable delay and a showing of actual prejudice. *Prutch v. Town of Quartzsite*, 231 Ariz. 431, 435 ¶ 13 (App. 2013). Neither are present here.

There was no unreasonable delay. Petitioners filed eight days after final publication and served Respondents the next business day. APP110.

Respondents have not alleged actual prejudice, nor could they. They were on notice of these defects as of July 20, 2026. Counsel for the Senate President and House Speaker notified the Secretary and Attorney General in writing on July 20, 2026, of the defects alleged here and requested correction before the language became final. APP021-APP022 ¶ 98, APP039–APP054.

There is no record of Proposition 144-specific prejudice. Marra described consequences if some revision forced the entire ballot onto an additional page, but did not say that correction here would do so, identify available space, estimate a specific cost, or state that revision by August 20 was impossible. APP103–APP104. The title has twenty-two unused words, and removing the federal comparison and litigation prediction frees additional space. APP031; APP033.

AZPIA rejected the same type of timing argument. After relief issued, the unlawful instruction was removed, overseas ballots were mailed one day before the deadline, and early ballots were timely mailed. 250 Ariz. at 65 ¶ 29. This Court held that delay did not excuse the official's duty to comply. Id. ¶ 30. *Groves* likewise entered final mandamus relief on August 11 during the same printing cycle. APP127–APP134.

The equities favor lawful ballot materials. Once unlawful official action is established, *AZPIA* holds that a separate showing under the traditional injunction factors is unnecessary. 250 Ariz. at 64 ¶ 26. No post-election remedy can replace language already presented to voters, while correction now requires only redrafting before printing. *Lane* confirms that enjoining misleading ballot language causes no cognizable harm and serves public policy. 258 Ariz. at 469 ¶ 29. The requested order changes no voter qualification, deadline, voting method, or substantive election rule; it enforces the preexisting statute governing what the ballot must say before printing.

V. The Court Can Grant Complete Relief Without Usurping Respondents' Drafting Role.

Petitioners do not ask this Court to become the ballot drafter. They ask it to identify the statutory defects and compel prompt lawful performance. RPSA 10(a)(3) permits a court to "order or prohibit specified action," and RPSA 18(c) permits the Court to make its decision immediately effective. *Groves* demonstrates the appropriate division: enjoin the unlawful wording, compel revision, and preserve the Secretary's and Attorney General's authority over the precise formulation. APP133–APP134.

Complaint Exhibit 2 supplies a workable, nonexclusive safe harbor. Its forty-one-word title mentions each principal subject, and its "yes" statement tracks the operative text without the federal comparison or litigation prediction. APP033. Petitioners do not insist on verbatim adoption. Rather, they ask the Court to identify Complaint Exhibit 2, with any modifications the Court deems appropriate, as one formulation that would satisfy § 19-125(D). Respondents may

either adopt that formulation or exercise their discretion to select different wording, provided the replacement: (1) identifies citizenship as a principal provision and essential change; (2) omits the comparison to federal law; and (3) describes Section F's operative terms without predicting how courts will apply them.

Because the remaining window is measured in days, effective relief should include a short compliance procedure. If Respondents choose different wording, they should submit it immediately for review, with Petitioners afforded a brief opportunity to object. The Court may retain jurisdiction or remand with directions and a deadline while preserving its ability to ensure compliance. This limited mechanism is necessary to prevent a second disputed draft from becoming unreviewable through the passage of time.

ATTORNEY FEES AND COSTS

Petitioners request their reasonable attorney fees, expenses, and taxable costs under A.R.S. §§ 12-341, -348, -1840, -2030, RPSA 7(i) and 17, ARCAP 21, and the private attorney general doctrine. Petitioners will submit a compliant statement if relief is granted.

CONCLUSION

Accordingly, the Court should accept jurisdiction and grant specialaction relief. It should: 1. Vacate the final judgment entered in Maricopa County Superior

Court No. CV2026-031499; 2. Declare that the Proposition 144 descriptive title violates A.R.S. §

19-125(D) by failing to summarize the measure's principal citizen-

ship provisions; 3. Declare that the Proposition 144 "yes" statement violates § 19-

125(D) by omitting the essential citizenship changes, appending the

federal-law comparison, and substituting a litigation prediction for

Section F's operative terms; 4. Enjoin Respondents from printing, transmitting, or using the chal-

lenged wording; 5. Compel Respondents, in their respective statutory roles, to prepare and approve compliant replacement wording on an expedited sched-

ule while preserving their discretion to choose among lawful formu-

lations; 6. Retain jurisdiction, or otherwise establish an immediate compli-

ance-review procedure, until lawful wording is approved and trans-

mitted; 7. Make its disposition effective immediately under RPSA 18(c); and 8. Award Petitioners their reasonable fees and costs and grant all

other appropriate relief.

Dated: August 14, 2026.

/s/ *James K. Rogers*
James K. Rogers
AMERICA FIRST LEGAL FOUNDATION
Attorney for Petitioners